

STATE OF NEW YORK

7507--A

2025-2026 Regular Sessions

IN SENATE

April 21, 2025

Introduced by Sen. HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to banning paper receipts for certain purchases and requiring businesses to provide proof of purchases electronically

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Article 27 of the environmental conservation law is amended by adding a new title 16 to read as follows:

TITLE 16

PAPER RECEIPT REDUCTION

Section 27-1601. Definitions.

27-1603. Paper receipt ban.

27-1605. Violations.

27-1607. Preemption of local law.

§ 27-1601. Definitions.

As used in this title:

1. "Business" means a company that accepts payment through credit or debit transactions. "Business" does not include a health care provider.

2. "Consumer" means a person who purchases, and does not offer for resale, food, alcohol, other tangible personal property, or services.

3. "Electronic form" includes, but is not limited to, a form sent through email or text message.

4. "Invoice" means an itemized list of goods or services provided before or after the point of sale through a contract stating the amount due.

5. "Proof of purchase" means a receipt for the retail sale of food, alcohol, or other tangible personal property, or for the provision of

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD11707-02-5

1 services, provided at the point of sale, but does not include an
2 invoice.

3 § 27-1603. Paper receipt ban.

4 1. On and after January first, two thousand twenty-eight, a proof of
5 purchase shall be provided to a consumer by a business only at the
6 consumer's option, unless a proof of purchase is otherwise required to
7 be given to the consumer by state or federal law.

8 2. On and after January first, two thousand twenty-eight, a paper
9 proof of purchase shall not be printed if the consumer opts to not
10 receive a proof of purchase, unless otherwise required by state or
11 federal law.

12 3. (a) On and after January first, two thousand thirty, if a consumer
13 opts to receive a proof of purchase pursuant to subdivision one of this
14 section, the proof of purchase shall be provided in electronic form or
15 paper form, at the consumer's option, unless a prescribed form is other-
16 wise required by state or federal law.

17 (b) Notwithstanding paragraph (a) of this subdivision, a business is
18 not required to provide an electronic proof of purchase if, due to
19 limited internet connectivity, a power outage, or other unexpected tech-
20 nical difficulties, the business is incapable of sending an electronic
21 proof of purchase.

22 4. Notwithstanding any provision of this section to the contrary, for
23 businesses with a gross revenue of five million dollars per year or
24 less, the requirements of subdivisions one and two of this section shall
25 be effective January first, two thousand thirty, and the requirements of
26 subdivision three of this section shall be effective January first, two
27 thousand thirty-two.

28 § 27-1605. Violations.

29 1. Any business who shall violate any provision of this title shall
30 receive a warning notice for the first such violation. A business shall
31 be liable to the state of New York for a civil penalty of twenty dollars
32 for each violation after receiving a warning, but such penalties shall
33 not to exceed three hundred dollars annually. A hearing or opportunity
34 to be heard shall be provided prior to the assessment of any civil
35 penalty.

36 2. The department and the attorney general are hereby authorized to
37 enforce the provisions of this title.

38 § 27-1607. Preemption of local law.

39 Jurisdiction in all matters pertaining to paper proof of purchase
40 restrictions as defined in this title is vested exclusively in the
41 state.

42 § 2. This act shall take effect immediately.